

**IN THE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH**

CRM-M-34017-2026
Date of decision: 17.06.2026

Manil Kumar

...Petitioner

Versus

State of Haryana

...Respondent

CORAM: HON'BLE MR. JUSTICE DEEPAK GUPTA

Present: Mr. Sandeep Gahlawat, Advocate for the petitioner.

Mr. Anuj Garg, DAG, Haryana.

Mr. Bawan Karanveer, Advocate and
Mr. Viren Sharma, Advocate for the complainant.

DEEPAK GUPTA, J. (ORAL)

By way of the present petition filed under Section 482 of the Bharatiya Nagarik Suraksha Sanhita, 2023, the petitioner seeks grant of anticipatory bail in FIR No.10 dated 13.01.2026 registered under Sections 318(4), 329(3), 336(3), 338, 340, 351(2) and 62 of the Bharatiya Nyaya Sanhita, 2023 at Police Station Narwana City, District Jind.

2. The allegations in the FIR arise out of a complaint made by the complainant claiming ownership and possession of a valuable immovable property situated at Water Works Road, Narwana. The prosecution case is that the property was fraudulently shown to have been transferred by preparing forged and fabricated documents, manipulating official records and creating a false property ID. It is alleged that the accused persons, acting in concert with each other and in connivance with certain officials, sought to usurp the property by portraying themselves as lawful owners despite having no title thereto.

3. Learned counsel for the petitioner submits that he has been falsely implicated in the present case. It is contended that the principal



allegations are against co-accused Ajay and that the petitioner is neither the beneficiary of the alleged transaction nor the recorded owner of the property in dispute. Learned counsel argues that the only circumstance relied upon by the prosecution is that a mobile number standing in the name of the petitioner was used during the relevant period. According to the petitioner, the said mobile number had been handed over to co-accused Ajay, who was working under him as a field worker/supervisor in connection with his business as a government contractor. It is further submitted that co-accused Ajay has already been granted regular bail and that the petitioner is ready to join investigation and cooperate with the investigating agency. On these premises, grant of anticipatory bail is sought.

4. *Per contra*, learned State counsel assisted by learned counsel for the complainant opposes the petition and submits that the petitioner is not a peripheral participant but is one of the principal architects of the alleged fraud. It is argued that the investigation has revealed the petitioner's involvement right from the stage of creation of the disputed property ID till execution of the impugned transaction. Learned counsel submits that the petitioner's mobile number was used in the application process for the property ID and was subsequently reflected in the documents pertaining to the transfer of the property. It is further submitted that custodial interrogation of the petitioner is necessary to identify the complete chain of conspirators, including any public officials involved in manipulation of official records.

5. I have heard learned counsel for the parties and perused the paper-book.

6. At this stage, the material collected during investigation prima facie indicates that the mobile number admittedly standing in the name of



the petitioner was used during crucial stages of the alleged transaction. The prosecution specifically alleges that the said number was reflected in the application relating to the disputed property ID and was also associated with the subsequent transfer process. The explanation sought to be offered by the petitioner that the number was being used by co-accused Ajay constitutes a matter of defence, the veracity whereof can be examined only after a thorough investigation and not while considering a petition for anticipatory bail.

7. The contention that co-accused Ajay has been granted regular bail is equally of no avail. Parity is not an abstract principle and each accused has to be considered on the basis of his own role and the requirements of investigation. The prosecution case before this Court is that the petitioner played a pivotal role in the execution of the alleged scheme and that the investigation has revealed his connection from the inception of the fraudulent transaction. Therefore, the case of the petitioner cannot be equated with that of a co-accused merely because the latter has been granted regular bail after arrest.

8. The offences alleged are not confined to an individual act of cheating but pertain to an organised attempt to manipulate public records and create false title documents in respect of immovable property. Allegations involving preparation of forged documents, tampering with official records and fraudulent transfer of valuable properties have serious ramifications upon public confidence in the sanctity of public records and the property registration system.

9. The power to grant anticipatory bail is an extraordinary discretionary power and is not intended to shield persons against whom serious allegations requiring custodial interrogation have emerged. The Hon'ble Supreme Court has consistently held that where the investigation is



at a crucial stage and the custodial interrogation of the accused appears necessary to unearth the larger conspiracy, identify accomplices and recover relevant material, grant of anticipatory bail may not be warranted.

10. In the present case, the investigation is still in progress. The allegations suggest involvement of multiple persons and possible manipulation of official records. The investigating agency is required to ascertain the exact manner in which the property ID was created, identify the role of each participant, trace the preparation of the allegedly forged documents and determine whether any public officials were involved in facilitating the fraud. Such investigation would be seriously prejudiced if the petitioner is granted the protective umbrella of anticipatory bail at this stage.

11. Having regard to the nature and gravity of the allegations, the prima facie material connecting the petitioner with the transaction, the requirement of custodial interrogation and the necessity of conducting a free, fair and effective investigation, this Court does not find it to be a fit case for grant of anticipatory bail.

Consequently, the present petition is dismissed.

12. However, anything observed herein shall be construed only for the purpose of deciding the present petition and shall not be treated as an expression of opinion on the merits of the case during investigation or trial.

17.06.2026

Yogesh

**(DEEPAK GUPTA)
JUDGE**

Whether speaking/reasoned:- Yes/No
Whether reportable:- Yes/No